

23STCV25164 23STCV25164

County: los-angeles

Division: Civil Law and Motion

Department: 310

Hearing date: 2026-07-10

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=LAM%2C310%2C07%2F10%2F2026

Source SHA-256: 52b63840bf1e1b2645a43bbf764be05aaf8468b22ea03ada201285a96bb19c0b

Case Number: 23STCV25164 Hearing Date: July 10, 2026 Dept: 310

Tentative Ruling

Judge Kevin C. Brazile

Department 310

Hearing Date: July 10, 2026

Case Name: Vasile v. West Valley Hospitality, Inc., et al.

Case No.: 23STCV25164

Matter: Motion to Strike Answer

Moving Party: Plaintiff Lillian Vasile

Responding Party: Unopposed

Ruling: The Motion is granted.

Moving party to give notice.

The Court encourages all parties to appear remotely via LA CourtConnect. If submitting on the Court's tentative ruling, please follow the instructions provided above.

Plaintiff Lillian Vasile seeks to strike the Answer of MST Hospitality West Valley, Inc. because it does not have counsel and because it is a suspended corporation.

Because a corporate entity cannot represent itself (see, e.g., *Caressa Camille, Inc. v. Alcoholic Beverage Control Appeals Bd.* (2002) 99 Cal.App.4th 1094, 1101), and “[a] corporation which has its powers suspended . . . lacks the legal capacity to prosecute or defend a civil action during its suspension” (*Sade Shoe Co. v. Oschin & Snyder* (1990) 217 Cal.App.3d 1509, 1512-1513), the Motion to Strike is granted. MST’s default is entered.

Moving party to give notice.